

2.	22CV1459	SERRANO EL DORADO OWNERS' ASSOCIATION VS. JOEL SOLOMON ET AL
MOTION TO EXONERATE UNDERTAKING		

On or around December 18, 2025, Petitioner, G&P Enterprises, LLC dba Allied Trustee Services posted an Undertaking in the amount of ten thousand (\$10,000) in connection with a third-party claim of ownership filed by Free Will Foundation, Inc. pursuant to Code of Civil Procedure § 720.260.

On February 13, 2026, the Court granted Petitioner's Petition for Determination of Third-Party Claim of Ownership and denied the third-party claim.

On March 27, 2026, the Court issued an Order Granting Judgment Assignee's Petition, Denying Third-Party Claim of Ownership and Confirming Levy wherein the Court ordered the **"undertaking posted by Petitioner Allied in connection with this proceeding is exonerated and no claim may be made against the surety based on the Third-Party Claim."**

On May 20, 2026, Petitioner filed a Notice of Motion to Exonerate Undertaking; Memorandum of Points and Authorities in Support Thereof. Allied asserts that no undertaking is required as the Court has determined the third-party claim of ownership in favor of Petitioner and against the third-party claimant. Allied requests the Court issue an order exonerating the undertaking posted by Allied pursuant to CCP § 720.260 and directing the bond be released and the surety relieved of all obligations. Allied's motion is unopposed.

TENTATIVE RULING #2:

PETITIONER'S REQUEST IS GRANTED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY

July 10, 2026
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AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.